



MUTUAL RELEASE – RELEASE OF CLAIMS

This Mutual Release of Claims (the “Release”), by and between Bayshore Plumbers (the “Employer”) and _____ (the “Employee”). Employee and the Employer are collectively referred to herein as “The Parties”.

In Consideration of the promises and covenant set herein below, The Parties hereto mutually agree as follows:

1. Incorporation of Recitals:

- The foregoing recitals are incorporated by reference herein, and by this reference, expressly made part of this agreement.

2. Release of Claims and Payment of Funds:

- By signing this Release, the Employee acknowledges and agrees that:
 - The receipt and acceptance of their regular salary and wages constitute full and complete satisfaction of all claims and potential claims against the Employer, based on or related to the Employee's employment with the Employer, as of the date this Release is signed by both parties.
 - This Release is executed in accordance with all applicable laws of the State of California and the United States.
- The Employee further agrees that by signing this document:
 - They release and forever discharge the Employer from any and all claims, demands, and causes of action, whether known or unknown, that may arise in the future, relating to their employment or separation from employment.

Acknowledgment:

- By signing below, the Employee acknowledges that:
 - They have received and accepted their full salary and wages up to the date of this Release.
 - They understand and agree to the terms of this Release, including the release of all potential future claims against the Employer.
 - They have been given the opportunity to consult with legal counsel regarding this Release and fully understand its contents.



Employee Full Legal Name:

Employee Signature:

Date:

Designation:

Employer's Representatives' Full Legal Name:

Employer's Representatives' Signature:

Date:

Designation:

3. No Retaliation or Adverse Action:

- Employee understands Employer will not retaliate or take any adverse action against Employee based on this Release. Employee is free to execute or disregard this Release without fear or any repercussions from Employer based on Employee's decision.

4. Recommendation Employee Consult Counsel:

- Employer explicitly recommends Employee review this Release with an attorney in order to understand the complete effect of this Release on Employee's legal rights and Employee's Obligations under this Release.

5. Entire Agreement:

- Employer and Employee agree this Release contains the sole and entire agreement, release, and understanding of between them with respect to the entire subject matter hereof, and no other agreement, oral or written, shall be deemed to exist or bind either hereto.

6. Capacity and Assignment:

- Employee hereby declares he/she has the capacity to execute this Release and has not assigned any rights affected herein to any other party.



7. Waiver, Modification, and Amendment:

- No provision of this release may be waived unless in writings signed by both Employee and employer. Waiver of any one provision in this Release shall not be deemed to be a waiver of any other provision herein. This Release may be modified or amended only by written agreement executed by employer and the Employee.

Section 1542 Waiver:

Each party to this Release expressly waives the projection of California Civil Code Section 1542, and expressly waives and releases any rights or benefits arising thereunder. Section 1542 of the California Civil Code states:

A GENERAL RELEASE DOES NOT EXTEND TO CLAIMS WHICH THE CREDITOR DOES NOT KNOW OR SUSPECT TO EXIST IN HIS FAVOR AT THE TIME OF EXECUTING THE RELEASE, WHICH F KNOWN BY HIM MUST HAVE MATERIALLY AFFECTED HIS SETTLEMENT WITH THE DEBTOR.

- Employer and Employee hereby acknowledge Civil Code Section 1542 and their individual understanding of the statute. Employers and Employees are aware the release contained in Paragraph 8 releases possible existing but unknown claims and assume the risk of releasing these claims.
- Employer and Employee hereto acknowledge he/she/it is/ are aware they may hereafter discover facts different from, or in addition to, those he/she/it or his/her/its attorneys now know or believe to be true with respect to the matters release in Paragraph 2 above, and agree the release so given in Paragraph 2 above shall be and remain in effect as full and complete releases of the respective claims, notwithstanding any such different or additional facts.

8. Severability:

- In the event any of the terms of provisions of this Release are found legally unenforceable, the remaining terms and conditions shall nevertheless be fully enforceable without regard to the unenforceable provisions or terms to the maximum extent permitted by law.



9. Governing Law:

- The terms and provision of this Release shall be construed, interpreted, and governed by the laws of the State of California.

10. Execution:

- This Release may be executed in one or more counterparts, each of which shall be deemed an original, but all of which together, shall be deemed to constitute a single document. Each person who signs below acknowledges he/she has received a copy of the Release containing five (5) pages and agrees to each of its terms and conditions. Each person acknowledges he/she has carefully read this Release, understands his/her opportunity to consult with counsel over its contents, knows its contents, and voluntarily executes the release. Each person acknowledges he/she can sign and bind himself/herself by signing this document.

11. Effective Date:

- This Release is effective and enforceable on the date of execution by Employer and Employee.

By Signing below, Employer and Employee hereby acknowledges their understanding of the terms and provisions of this Release and agree to be bound by the terms contained therein.

Employer: **BAYSHORE PLUMBERS**

Employee Name: _____

Date: _____

Signature: _____

Date: _____

Name: _____

Signature: _____

Designation: _____

Name: _____

Address: _____
